IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF ILLINOIS
EASTERN DIVISION

PAPER-PAK INDUSTRIES Plaintiff, v. OLD DOMINION FREIGHT LINE, INC. Defendant.	)	FILED: MAY 30, 2008 No. 08CV3117 RCC JUDGE ZAGEL MAGISTRATE JUDGE ASHMAN

COMPLAINT

Now comes Plaintiff, PAPER-PAK INDUSTRIES (hereinafter referred to as "Paper-Pak" or "Plaintiff"), by and through its attorneys, JOEL H. STEINER and AXELROD, GOODMAN, STEINER & BAZELON, and complains of Defendant OLD DOMINION FREIGHT LINE, INC.. (hereinafter referred to as "Old Dominion" or "Defendant"), as follows:

1. Plaintiff is a Nevada corporation which ships goods in interstate commerce.

2. Defendant is a corporation having its principal place of business in Thomasville, NC.

3. Defendant is a for-hire motor carrier of property operating in interstate commerce subject to the jurisdiction of and operating pursuant to a registration issued by the Federal Motor Carrier Safety Administration ("FMCSA") in Docket No. MC 107478.

4. This Court has jurisdiction pursuant to 28 U.S.C. §§1331, 1337 and 49 U.S.C. §14706.

5. Defendant operates routes as an interstate motor carrier within the United States Judicial District for the Northern District of Illinois.

6. On or about August 6, 2007, Plaintiff tendered to Defendant a shipment of freight for transportation in interstate commerce.

7. Defendant issued its bill of lading, waybill number 044006857, for said shipment.

8 At the time that Plaintiff tendered said shipment to Defendant it was in good order and condition and Defendant acknowledged receipt of the shipment in good order and condition on the bill of lading therefor.

9. When Defendant tendered delivery of the shipment to Plaintiff, as directed by Plaintiff, the shipment no longer in good order and condition, but rather in a damaged condition requiring extensive repairs to the goods shipped.

10. Plaintiff's damages incurred in the repair of the shipment referred to above were $40,621.00.

11. Plaintiff has made frequent and repeated demands upon Defendant to pay it for the damages to said shipment ($40,621.00) which Defendant has failed and refused to pay, all to Plaintiff's damage.

12. Pursuant to 49 U.S.C. § 14706, Defendant is liable to Plaintiff for its full actual loss, which is all costs incurred by Plaintiff with respect to the repair of the shipment ($40,621.00).

WHEREFORE, Plaintiff, PAPER-PAK INDUSTRIES, prays for a judgment in its favor and against Defendant, OLD DOMINION FREIGHT LINE, INC.., in the amount of $40,621.00 plus interest, costs and attorney's fees.

PAPER-PAK INDUSTRIES

By: /S/ *Joel H. Steiner*
Joel H. Steiner,
One of its Attorneys
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OF COUNSEL:

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